
Introduction

Imagine that you are the President of the United States, and it's the morning of September 11, 2001. You are enjoying a public relations session, reading to school children in Florida. Up rushes a Secret Service Agent who whispers into your ear about the attacks in New York, Washington and Pennsylvania. You close your eyes, briefly, and your mind reels. The full weight—the incredible responsibility—of the presidency suddenly seems to push you down into the ground. You finish your session with the children politely, but your thoughts are detached, swirling around the questions of what you should do, and whether more attacks are coming ...

Well, what would *you* do? Your country has just experienced the most dramatic strikes against it since Pearl Harbor. Indeed, these attacks seem deliberately modelled after that explosive “Day of Infamy” in 1941. The attacks on the World Trade Center were terrorist acts, deliberately killing random civilians with the motive of spreading fear throughout the American people. But the strike on the Pentagon seems to be more a classical act of war, deliberately striking an official military target. Put them together and you have got a powerful case that your country is under attack by a deadly force with malevolent intent: armed self-defence seems the order of the day.

But is it? Are you letting your anger and desire for revenge affect your judgement? What about your fear and uncertainty? How do you find out who did this—and how do you know that you can trust that source of knowledge? How do you balance the views of those “hawkish” advisors urging a muscular military response—perhaps even invoking martial law—against those “doves” saying that terrorism is best dealt with by using police investigations, not the armed forces? Do you project an angry and forceful exterior so as to convey strength, or do you rather remain measured and cautious, so you won't panic your people? Do you strike now to prevent possible further attacks, or wait for more evidence and a cooler head?

How might your private beliefs mix with your public responsibilities here? Say you are an intensely religious person ... a pacifist by faith. Should you let your personal attitudes affect your official choices, which will have an impact upon the lives of millions? Say, by contrast, that you're a cynic, thinking it's a dog-eat-dog world out there. Will you let that cynicism rule your deliberations on grounds that "we've got to get them before they get us again"? Finally, what if you're a moralist, and you are outraged by the huge injustice dealt to your country by the attackers? Should you turn that outrage outward, using military force like a flaming sword, crusading on behalf of righteousness?

These are all difficult questions, they push different buttons, and only one person had to confront them for real that day. We should, to an extent, empathize with those who have to make such seemingly impossible decisions. On the other hand, we must still insist that such decision-makers *explain* their choices to us—their fellow citizens—and enumerate *their reasons* for doing, and ordering, what they do. For warfare, in all its forms, is serious business. Its very gravity, its degree of consequence, its cost and its impact on peoples' lives demand that we reflect intelligently upon its nature and the choices surrounding it.

War should be understood as an *actual, intentional and widespread* armed conflict between political communities. Thus, fisticuffs between individual persons do not count as war, nor does a gang fight, nor does a feud on the order of the Hatfields versus the McCoys. War is a phenomenon which occurs *only* between political communities, defined as those entities which either are states or intend to become states (in order to allow for civil war). Classical war is international war, a war between different states, like the two World Wars. But just as present—and apparently growing in incidence¹—is war within a state between rival groups or communities, like the American Civil War. I suppose that certain political pressure groups, like terrorist organizations, might also be considered "political communities," in that they are associations of people with a political purpose and, indeed, many of them aspire to statehood or to influence the development of statehood in certain lands.

What's statehood? People often use "nation" and "state" interchangeably but we'll need to keep them conceptually distinct for our purposes. Most people follow Max Weber's distinction between nation and state. A nation is a group which thinks of itself as "a people," usually because they all share many things in common, such as ethnicity, language, culture, historical experience, a set of ideals and values, habitat, cuisine, fashion and so on. The state, by contrast, refers much more narrowly to the machinery of government which organizes life in a given territory.² Thus, we can distinguish between the American state and the American people, or between the government of France and the French nation. At the same time, you have probably heard the term "nation-state." "Nation-state" refers to the relatively recent phenomenon wherein a nation wants its own state, and moves to form one. This started out as a very European trend—an Italian state for the Italian

nation, a German state for the German people, etc.—but it has spread throughout the world. Note that in some countries, such as America, Australia and Canada, the state actually presides over many nations, and you hear of “multi-national societies.” Most societies with heavy immigration are multi-national. Multi-national countries are sometimes prone to civil wars between the different groups. This has been especially true of central Africa in recent years, as different peoples struggle over control of the one state, or else move to separate themselves from the existing arrangement (itself often having been put in place by distant imperial powers insensitive to local group and ethnic differences). All these distinctions will come in handy as we proceed. For now, we note how central the issue of statehood is to the essence of warfare. Indeed, I would argue that *all warfare is precisely, and ultimately, about governance*. War is a violent way for determining who gets to say what goes on in a given territory regarding, for example, who gets power, who gets wealth and resources, whose ideals prevail, who is a member and who is not, which laws get made, what gets taught in schools, where the border rests, how much tax is levied, and so on. War is the ultimate means for deciding these issues if a peaceful process or resolution can’t be found.

The mere *threat* of war and the presence of mutual disdain between political communities do not suffice as indicators of war. The conflict of arms must be actual, and not merely latent, for it to count as war. Further, the actual armed conflict must be both intentional and widespread: isolated clashes between rogue officers, or border patrols, do not count as acts of war. The onset of war requires a conscious commitment and a significant mobilization on the part of the belligerents in question. There’s no real war, so to speak, until the fighters *intend* to go to war and until they do so with a heavy *quantum* of force. Let us here cite, by way of support, the views of the one and only (so-called) “philosopher of war,” Carl von Clausewitz. Clausewitz famously suggested that war is “the continuation of policy by other means.” Surely, as a description, this conception is both powerful and plausible: war is about governance, using violence instead of peaceful measures to resolve policy (which organizes life in a land). This notion fits in nicely with Clausewitz’s own general definition of war as “an act of violence intended to compel our opponent to fulfil our will.” War, he says, is like a duel, but on “an extensive scale.”³ As Michael Gelven has written recently, war is intrinsically vast, communal (or political) and violent.⁴ It is a widespread and deliberate armed conflict between political communities, motivated by a sharp disagreement over governance. In fact, we might say that Clausewitz was right, but not quite deep enough: it’s not just that war is the continuation of policy by other means; it’s that war is *about the very thing which creates policy* (i.e., governance itself). War is the intentional use of mass force to resolve disputes over governance. War is, indeed, governance by bludgeon. Ultimately, war is profoundly anthropological: it is about which group of people gets to say what goes on in a given territory.

War is a brutal and ugly enterprise. Yet it remains central to human history and social change. These two facts together might seem paradoxical and inexplicable, or they might reveal deeply disturbing facets of the human character. What is certainly true, in any event, is that war and its threat continue to be driving forces in our lives. Recent events graphically demonstrate this proposition, whether we think of the 9/11 attacks, the counter-attack on Afghanistan, the overthrow of Iraq's Saddam Hussein, the Darfur crisis in Sudan, or the ongoing "war on terror." We all had high hopes going into the new millennium in 2000; alas, this new century has already been savagely scarred with warfare.

War's violent nature and controversial social effects raise troubling moral questions for any thoughtful person. Is war always wrong? Might there be situations when it can be a justified, or even a smart, thing to do? Will war always be part of human experience, or can we do something to make it disappear? Is there a fair and sensible way to wage war, or is it all hopeless, barbaric slaughter? When wars end, how should post-war reconstruction proceed, and who should be in charge? What are our rights and responsibilities when our own society makes the move to go to war?

This book will explore all these questions and more. It is designed to be an introduction to the ethics of war and peace which is clear, comprehensive and informed by modern history. It guides the reader through all the controversies and competing values, and it discusses in detail cases ranging from World War II to the Persian Gulf War, from Vietnam and 9/11 to the overthrow of Saddam Hussein and the "war on terror." This text, it is hoped, will offer a very strong foundation on war's essential moral questions to any interested and reflective reader.

The book is split into two sections, and it *does* recommend a particular way of best understanding these issues. This way is framed by current international law and just war theory. This way is, in my view, both the most important and influential perspective in today's world, as well as the one most solidly grounded ethically. Hence the extended first section on this perspective. Just war theory is a connected body of ideas and values which considers when war can be ethically justified. It offers a set of moral rules which societies should follow during the beginning, middle and end of war. We shall examine and explain these rules, with depth and insight, in the first section. It is especially important to do so, since so many of these rules have made their way into the international laws of armed conflict, contained in such famous documents as the United Nations' Charter and the Geneva Conventions. This is not, however, a dusty book devoted to painstaking analysis of such laws; it is, rather, a "big picture" book centrally focused on the more important ethical principles behind them and how such principles apply to actual cases of armed conflict.

Just war theory's core premise is that sometimes countries can be morally justified in going to war. Pacifism, by contrast, is best understood as the view

that war is never morally justified. Realism, the third big perspective on this issue, disagrees with both pacifism and just war theory by suggesting that war has nothing to do with morality—it is all about naked self-interest, survival and the pursuit of power over one's rivals. Almost all opinions of war's morality can be slotted into one of these three fundamental attitudes, based on these definitions.

Realism and pacifism are examined and evaluated in the second section and, where appropriate, I do describe the historical context and delve behind each body of thought. While, in the end, I do argue for and endorse just war theory, I make an effort to be fair and charitable to realism and pacifism. *They each have something substantial to contribute to the debate.* In the final analysis, though, I do believe that realism and pacifism should be, on the whole, rejected as somewhat extreme doctrines, whereas just war theory appeals as occupying the sensible middle ground. This is *not* to say that just war theory is perfect or fully satisfying. It is neither of these things, and it probably needs constant redevelopment in light of new events, ideas and technology, but it remains more satisfying than the alternatives.

This text has a number of distinctive features which commend it to the reader. First, it has moved into the twenty-first century, and analyzes the latest issues that have recently emerged, such as terrorism and preventive self-defence against it, as well as recent cases, such as the 2003 Iraq attack and the subsequent reconstruction and ongoing insurrection. Second, the book includes two appendices: the first offering lists of (and websites for finding) the most important laws of armed conflict; and the second offering a handy listing of just war theory sources most frequently cited. Third, this book connects just war theory to deeper issues of ethics and politics, such as human rights protection. Too often, just war theory is portrayed as a somewhat quaint, self-standing structure at the margins of applied ethics—instead of being a consistent, important and integral part of a human rights-based approach to some of the most pressing political issues of our time.

This book goes well beyond conventional treatments of just war theory by examining: 1) its main rivals, realism and pacifism, in detail; 2) both just war theory's history *and* its current concepts and applications; 3) the interconnections between the just war rules and categories; 4) new demands for *international* authorization for resorting to force; 5) supreme emergencies, including genocide; 6) the justice of peace settlements, occupations and post-war reconstruction; and 7) the complex issue of how governments should treat their own citizens—be they civilians or soldiers—during wartime. This last issue concerns controversial topics like civil liberties and anti-terrorist legislation, and it only strengthens the connection between just war theory and vital issues in contemporary social organization. Indeed, this reworking of just war theory strives to be a substantial, creative contribution to the tradition which goes well beyond the status quo. Some people, upon reading drafts of this work, asked me whether this actually is just war theory, since

so many new understandings, connections and innovations are attempted. It *is* just war theory, and I like to think such questions show I'm on to something. You decide.

Notes

1. K. Holsti, *The State, War and the State of War* (Cambridge: Cambridge University Press, 1996).
2. M. Weber, *General Economic History* (London: Dover, 2003), 8–52.
3. Carl von Clausewitz, *On War*, trans. A. Rapoport (Harmondsworth, England: Penguin, 1995), 100–2.
4. M. Gelven, *War and Existence* (Philadelphia, PA: Penn State University Press, 1994), *passim*.